

JUSTIFICATION FOR OTHER THAN FULL & OPEN COMPETITION

AUTHORITY: FAR 6.302, 41 U.S.C. 253(c)

Requirement Title / Name: WIP Toppenish Power Plant #2 Power Service Change
Purchase Request Number: 44011083
Originating Office (Customer): Peter Plant
Division / Unit / Branch: Wapato Irrigation Project

1. This is a justification for other than full and open competition.

Agency: Bureau of Indian Affairs
IA Acquisition Office: A12 Northwest Region

2. Nature and/or description of the action being approved:**Requirement:** New**Pricing:** Firm-Fixed Price**Proposed Contractor/Vendor:**

Name: Yakama Power
Street Address: 61220 US Highway 97
City, State, Zip: Toppenish, WA 98948
Phone: (509) 865-7697

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The Wapato Irrigation Project (WIP) requires a power service change from single phase power to three phase power. The electrical switchgear, components and motors are currently being repaired under an urgent and compelling contract. This will require the replacement of a three (3) phase 277/480-volt power meter with a power capacity of 150kva at the Unit Two Pump House. Yakama Power will also install 3,100 feet of overhead wire on four new poles and install wire in the conduits.

IGE: [REDACTED]**4. An Identification of the statutory authority permitting other than full and open competition:**

- ☒ FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. 41 U.S.C. 3304(a)(1)
☐ FAR 6.302-2 -- Unusual and Compelling Urgency. 41 U.S.C. 3304(a)(2)
☐ FAR 6.302-3 -- Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services. 41 U.S.C. 3304(a)(3)
☐ FAR 6.302-4 -- International Agreement. 41 U.S.C. 3304(a)(4)
☐ FAR 6.302-5 -- Authorized or Required by Statute. 41 U.S.C. 3304(a)(5)
☐ FAR 6.302-6 -- National Security. 41 U.S.C. 3304(a)(6)
☐ FAR 6.302-7 -- Public Interest. 41 U.S.C. 3304(a)(7)

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Yakama Power is the sole source Electric Utility Company providing electrical service to the Wapato Irrigation Project's Toppenish Creek Pumping Plant (TCPP). The electrical switchgear and components and motors are currently being repaired under an urgent and compelling contract. The repair work will require additional support and can only be completed by Yakama Power as the sole source of electricity for this area. Failure to provide the required irrigation would cause crop failure and could cause the government to be open to tort claims for the value of the lost crops.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

A Notice of Intent to sole source DOI AFBO250022 was posted for (4) days to the Government Point of Entry (GPE) as required by FAR 5.201. No responses were received from any other sources. Award notice will be posted per JOFOC requirements. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202(a)(5) applies.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on the following:

IAW FAR 13.106-1(b)(1)(i) and 13.106-3(a)(2)(vii):

- Soliciting from a single source: It would have been reasonable to solicit from one source after it was determined that the circumstances of the contract action deemed that only one source was reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
- Any reasonable basis: Yakama Power is the sole provider for electricity the area that the pumping plant is located in and is required to do the the repair work that is needed to get this pumping plant operational again.

8. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Market Research conducted and found Yakama Power is the sole source Electric Utility Company providing electrical service to the Wapato Irrigation Project's Toppenish Creek Pumping Plant (TCPP). The electrical switchgear and components and motors are currently being repaired under an urgent and compelling contract. The repair work will require additional support and can only be completed by Yakama Power as the sole source of electricity for this area.

9. Any other facts supporting the use of justification of other than full and open competition, such as:

There are no other electric utility companies in the area that services Wapato Irrigation Project's Toppenish Creek Pumping Plant (TCPP). The repair work will require additional support and can only be completed by Yakama Power as the sole source of electricity for this area.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

There are no other electric utility companies in the area that services Wapato Irrigation Project's Toppenish Creek Pumping Plant (TCPP).

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

There are no further barriers to competition as there are no other electric utility companies in the area that provides power for the Wapato Irrigation Project's Toppenish Creek Pumping Plant.

Originating Office Attestation:

I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.



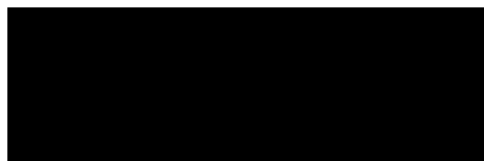
Peter Plant

WIP Project Administrator

Wapato Irrigation Project

12. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.



Brian Roberts

Contracting Officer

Bureau of Indian Affairs

ADDITIONAL APPROVALS:

CCO or One Level Above the CO *(if the CCO is the signing CO)*

(Required for acquisitions valued between \$250K - \$750K)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

N/A

N/A

N/A

IA Competition Advocate

(Required for acquisitions valued between \$750K - \$15M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

N/A

IA Competition Advocate

Head of the Contracting Activity (HCA)

(Required for acquisitions valued between \$15M - \$75M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

N/A

Head of the Contracting Activity

Senior Procurement Executive (SPE)

(Required for acquisitions valued over \$75M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

N/A

Senior Procurement Executive